

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Fenkel	Team: Squad #10	CCRB Case #: 201504009	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/19/2015 3:00 PM	Location of Incident: 30 Avenue and 43rd Street and § 87(2)(b)	18 Mo. SOL 11/19/2016	Precinct: 114		
Date/Time CV Reported Tue, 05/19/2015 3:26 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/19/2015 3:26 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT William Unverzagt	05227	933432	114 PCT
2. POM Ronald Robinson	16053	929054	114 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Ronald Robinson	Abuse: At 30th Avenue and 43rd Street in Queens, PO Ronald Robinson questioned § 87(2)(b)	A . Exonerated
B . SGT William Unverzagt	Abuse: At 30th Avenue and 43rd Street in Queens, Sgt. William Unverzagt questioned § 87(2)(b)	B . Exonerated
C . SGT William Unverzagt	Abuse: At 30th Avenue and 43rd Street in Queens, Sgt. William Unverzagt frisked § 87(2)(b)	C . Unsubstantiated
D . POM Ronald Robinson	Abuse: At 30th Avenue and 43rd Street in Queens, PO Ronald Robinson frisked § 87(2)(b)	D . Unsubstantiated
E . POM Ronald Robinson	Abuse: At 30th Avenue and 43rd Street in Queens, PO Ronald Robinson searched § 87(2)(b)	E . Substantiated
F . SGT William Unverzagt	Abuse: At 30th Avenue and 43rd Street in Queens, Sgt. William Unverzagt detained § 87(2)(b)	F . Unsubstantiated
G . POM Ronald Robinson	Abuse: At 30th Avenue and 43rd Street in Queens, PO Ronald Robinson detained § 87(2)(b)	G . Unsubstantiated
H . SGT William Unverzagt	Abuse: Sgt. William Unverzagt entered § 87(2)(b) in Queens.	H . Unsubstantiated
I . POM Ronald Robinson	Abuse: PO Ronald Robinson entered § 87(2)(b) in Queens.	I . Unsubstantiated
J . SGT William Unverzagt	Abuse: At § 87(2)(b) in Queens, Sgt. William Unverzagt refused to provide his name to § 87(2)(b)	J . Unsubstantiated
K . POM Ronald Robinson	Abuse: At § 87(2)(b) in Queens, PO Ronald Robinson refused to provide his name to § 87(2)(b)	K . Unsubstantiated

Case Summary

On May 19, 2015, at approximately 3:00 p.m. § 87(2)(b) arrived at the Key Food store, located at 30th Avenue and 43rd Street in Queens. Within minutes of entering the store, § 87(2)(b) was approached by two plainclothes officers, identified by the investigation as Sgt. William Unverzagt and PO Ronald Robinson (**Allegation A-B**). The security camera footage from the Key Food store captured the interaction. Sgt. Unverzagt asked § 87(2)(b) for identification, and § 87(2)(b) stated that he did not have any identification on him. Sgt. Unverzagt informed § 87(2)(b) that he fit the description of a suspect wanted for questioning by the 114th Precinct detective squad. Sgt. Unverzagt and PO Robinson frisked § 87(2)(b) which was captured by the Key Food security cameras, and PO Robinson searched § 87(2)(b) (Board Review 1 and 2) (**Allegation C-E**). § 87(2)(b) was handcuffed by PO Robinson, placed into the officers' unmarked patrol car, and driven to his home located at § 87(2)(b) in Queens, in order to retrieve his identification (**Allegation F-G**). Upon arrival at § 87(2)(b)'s residence, Sgt. Unverzagt and PO Robinson entered § 87(2)(b)'s apartment (**Allegation H-I**). Inside § 87(2)(b)'s apartment, PO Robinson retrieved § 87(2)(b)'s identification, which confirmed § 87(2)(b)'s identity and proved he was not the suspect they were looking for. § 87(2)(b)'s handcuffs were removed, and as the officers exited § 87(2)(b)'s apartment, § 87(2)(b) requested their names. PO Robinson allegedly stated his name was "Mr. Fantastic" and Sgt. Unverzagt allegedly ignored § 87(2)(b)'s request (**Allegation J-K**). § 87(2)(b) followed the officers outside, and asked PO Robinson for his name again, and PO Robinson allegedly did not respond to § 87(2)(b)'s request. Sgt. Unverzagt and PO Robinson left § 87(2)(b)'s home without further incident. § 87(2)(b) was not issued any summonses or arrested.

Mediation, Civil, and Criminal Histories

- Mediation was offered to § 87(2)(b) who opted to have his complaint investigated.
- As of June 22, 2015, § 87(2)(b) has not filed a notice of claim with the NYC Comptroller's Office (Board Review 3).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 5).
- Sgt. Unverzagt has been a member of service for 12 years and has had 5 prior CCRB complaints filed against him involving 11 allegations, none of which have been substantiated. In 200503393, the complainant alleged that Sgt. Unverzagt failed to respond to their request for his name and shield number, and the allegation was closed as unsubstantiated. § 87(2)(g)
- PO Robinson has been a member of service for 14 years and has had 12 prior CCRB complaints filed against him involving 17 allegations, none of which have been substantiated. § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

Sgt. Unverzagt and PO Robinson acknowledged their interaction with § 87(2)(b) during their CCRB interviews. § 87(2)(g)

Allegation A – At 30th Avenue and 43rd Street in Queens, Sgt. William Unverzagt questioned

§ 87(2)(b)

Allegation B – At 30th Avenue and 43rd Street in Queens, PO Ronald Robinson questioned

§ 87(2)(b)

It is undisputed that § 87(2)(b) was questioned by Sgt. Unverzagt and PO Robinson.

According to § 87(2)(b) within minutes of entering Key Food, he was approached by Sgt. Unverzagt and PO Robinson. § 87(2)(b) was asked for his identification, though he could not recall who specifically asked, and stated that he did not have any on him. PO Robinson informed § 87(2)(b) that he matched the description of a suspect wanted for robbery, and that he would need identification to prove otherwise. § 87(2)(b) was shown a photograph, though he could not recall by who, on a cell phone of a black male.

In their CCRB testimonies, Sgt. Unverzagt and PO Robinson maintained that § 87(2)(b) was approached because he fit the description of a homicide suspect wanted for questioning. While PO Robinson stated that he had a copy of the wanted poster with him at the time, Sgt. Unverzagt testified that the field intelligence officer sent a picture of the wanted poster to his cell phone. The poster, which PO Robinson presented a color copy of during his CCRB interview, is of § 87(2)(b) who was sought as a witness to a homicide. § 87(2)(b) was described as a § 87(2)(b)-old black male, who § 87(2)(b) had black braided hair and brown eyes (Board Review 6). § 87(2)(b) is a § 87(2)(b)-old black male, § 87(2)(b), with black braided hair and brown eyes (Board Review 7). § 87(2)(b)'s skin tone is relatively similar to § 87(2)(b)'s, and based on their facial features, § 87(2)(b) could have reasonably been mistaken for § 87(2)(b) (Board Review 8).

An officer's request for identification during a police-initiated encounter constitutes a level one request for information which must be supported by an objective credible reason to approach. People v. McIntosh, 96 N.Y. 2d 521 (2001) (Board Review 9).

§ 87(2)(g)

It is therefore recommended that **Allegation A** and **Allegation B** be **exonerated**.

Allegation C – At 30th Avenue and 43rd Street in Queens, Sgt. William Unverzagt frisked

§ 87(2)(b)

Allegation D – At 30th Avenue and 43rd Street in Queens, PO Ronald Robinson frisked

§ 87(2)(b)

It is undisputed that Sgt. Unverzagt and PO Robinson frisked § 87(2)(b)

The security cameras inside the Key Food store camera captured Sgt. Unverzagt and PO Robinson as they frisked § 87(2)(b) in an aisle of the store (Board Review 1 and 2).

According to PO Robinson after Sgt. Unverzagt decided to bring § 87(2)(b) back to his apartment, PO Robinson asked § 87(2)(b) if he minded if PO Robinson checked him for the officers safety and § 87(2)(b) responded that he did not mind.

Sgt. Unverzagt stated that he asked § 87(2)(b) if he had any weapons on him and § 87(2)(b) denied having any weapons and stated that Sgt. Unverzagt could check if he wanted to. Sgt. Unverzagt testified that PO Robinson searched § 87(2)(b) for contraband after he was frisked and handcuffed as per procedure before placing a suspect into a police vehicle.

According to Sgt. Unverzagt, he frisked § 87(2)(b) along his waistband for hard objects that could be a weapon. In his CCRB testimony, PO Robinson acknowledged that he frisked § 87(2)(b) along his pant's pockets, his waistband, and his neckline. Both Sgt. Unverzagt and PO Robinson stated that they frisked § 87(2)(b) due to the violent nature of the crime he was believed to be wanted for. Aside from this factor, neither Sgt. Unverzagt nor PO Robinson could articulate any other details about § 87(2)(b) that made them believe he carried a weapon, and the frisk yielded negative results.

According to People v. Gamble, 210 A.D. 2d 903 (App. Div. 4th Dept. 1994), when a sufficient basis for detention exists, an officer may conduct a patdown frisk as a routine measure preliminary to transporting a suspect in a police vehicle (Board Review 11).

§ 87(2)(g)

It is therefore recommended that **Allegation C** and **Allegation D** be closed as **unsubstantiated**.

Allegation E – At 30th Avenue and 43rd Street in Queens, PO Ronald Robinson searched

§ 87(2)(b)

§ 87(2)(g)

According to § 87(2)(b) PO Robinson searched inside his front sweatshirt pocket. § 87(2)(b) could not recall if this happened before or after he was asked to provide his identification. Though video from the Key Food security camera system shows PO Robinson and Sgt. Unverzagt frisking § 87(2)(b) the video is not clear enough to show whether or not PO Robinson searched § 87(2)(b) (Board Review 1 and 2).

In his CCRB testimony, PO Robinson denied that he searched § 87(2)(b) and only acknowledged the frisk, which yielded negative results. According to PO Robinson, as he frisked § 87(2)(b)'s pockets, he asked § 87(2)(b) what was inside them, and § 87(2)(b) pulled out his cell phone and keys. § 87(2)(b) also informed PO Robinson that he carried money in his pockets.

A UF-250 prepared by PO Robinson indicated that § 87(2)(b) was searched because of a hard object; a cellphone in his front waist pocket (Board Review 12).

In his CCRB testimony, Sgt. Unverzagt testified that PO Robinson searched § 87(2)(b) for contraband after he was frisked and handcuffed. Sgt. Unverzagt noted that such a

search is procedure before placing a suspect into a police vehicle. Nothing was recovered from the search.

According to People v. Gamble, 210 A.D. 2d 903 (App. Div. 4th Dept. 1994), when a sufficient basis for detention exists, an officer may conduct a patdown frisk as a routine measure preliminary to transporting a suspect in a police vehicle (Board Review 11). According to People v. Robinson, 125 A.D.2d 259 (App. Div. 1st Dept. 1986), a reasonable intrusion generally takes the form of a patdown of the detained person's outer clothing to determine the existence of any weapons. Once that limited intrusion fails to reveal a weapon and the basis for the officer's fear for his safety has therefore abated, the search must stop. Additionally, the criteria set forth in People v. Robinson specifies that in instances where a visual observation or limited protective frisk of the detainee reveals a bulge, that bulge must look or feel like a weapon before the officer is entitled to subject the detainee to a more intrusive search (Board Review 13).

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **substantiated**.

Allegation F – At 30th Avenue and 43rd Street in Queens, Sgt. William Unverzagt detained

§ 87(2)(b)

Allegation G – At 30th Avenue and 43rd Street in Queens, PO Ronald Robinson detained

§ 87(2)(b)

It is undisputed that § 87(2)(b) was detained by Sgt. Unverzagt and PO Robinson. § 87(2)(g)

According to § 87(2)(b) PO Robinson informed him that he matched the description of a suspect wanted for robbery, and that he would need to get his identification to prove otherwise. § 87(2)(b) was handcuffed, and Sgt. Unverzagt and PO Robinson placed § 87(2)(b) into their patrol car, and drove him to his apartment located at § 87(2)(b) in Queens to obtain his identification.

According to PO Robinson, § 87(2)(b) offered to go back to his home to retrieve his identification and was handcuffed and transported to his apartment. Sgt. Unverzagt, however, stated that § 87(2)(b) was handcuffed and told that he would be brought back to the station house for questioning before § 87(2)(b) suggested that the officers bring him back to his apartment. Both officers stated that § 87(2)(b) was asked if anyone could bring him his identification but § 87(2)(b) stated that no one was home. After Sgt. Unverzagt and PO Robinson obtained § 87(2)(b)'s identification at his apartment, it was determined that § 87(2)(b) was not § 87(2)(b), and § 87(2)(b) was released.

§ 87(2)(g)

It is therefore recommended that **Allegation F** and **Allegation G** be closed as **unsubstantiated**.

Allegation H – Sgt. William Unverzagt entered § 87(2)(b) in Queens.

Allegation I – PO Ronald Robinson entered § 87(2)(b) in Queens.

It is undisputed that Sgt. Unverzagt and PO Robinson entered § 87(2)(b)'s home.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation H** and **Allegation I** be closed as **unsubstantiated**.

Allegation J – Sgt. William Unverzagt refused to provide his name to § 87(2)(b)

Allegation K – PO Ronald Robinson refused to provide his name to § 87(2)(b)

In his CCRB testimony, § 87(2)(b) testified that as Sgt. Unverzagt and PO Robinson exited his apartment, he asked, “Excuse me, what is your name? What are ya’ll names? What precinct are ya’ll from?” § 87(2)(b) alleged PO Robinson replied with a false name such as “Mr. Fantastic”, though § 87(2)(b) could not specifically recall exactly what PO Robinson said. § 87(2)(b) alleged Sgt. Unverzagt did not reply to his request for his name. § 87(2)(b) was confident that Sgt. Unverzagt heard his request, as he asked from a distance of approximately two feet away. § 87(2)(b) then left his apartment, and followed Sgt. Unverzagt and PO Robinson outside of his building. § 87(2)(b) alleged that PO Robinson held the building’s door open for him, and when asked again for his name, did not respond to § 87(2)(b) s request.

In his CCRB testimony, Sgt. Unverzagt stated that § 87(2)(b) requested his name while he was inside § 87(2)(b) s residence. Sgt. Unverzagt identified himself as “Sgt, Unverzagt, shield number 5227.” Sgt. Unverzagt denied that he failed to respond to a request for his name. Sgt. Unverzagt denied hearing § 87(2)(b) ask PO Robinson for his name, denied hearing PO Robinson identify himself as “Mr. Fantastic”, and denied hearing PO Robinson provide a false name to § 87(2)(b).

In his CCRB testimony, PO Robinson denied that § 87(2)(b) asked for his name while he was inside § 87(2)(b) s residence, and did not recall if § 87(2)(b) asked for Sgt. Unverzagt’s name. PO Robinson denied hearing Sgt. Unverzagt fail to provide his name to § 87(2)(b). PO Robinson testified that as he walked down the stairs to exit § 87(2)(b) s apartment building, § 87(2)(b) asked, “Fam, what's your name again?” PO Robinson explained that “fam” is slang for family. At this time, PO Robinson identified himself to § 87(2)(b) as “Robinson.” § 87(2)(b) asked PO Robinson what precinct he worked at, and PO Robinson informed him he worked at the 114th precinct. § 87(2)(b) stated “Alright.” PO Robinson denied that he identified himself to § 87(2)(b) as “Mr. Fantastic.” PO Robinson denied providing a false name to § 87(2)(b) and denied refusing to provide his name to § 87(2)(b) at any point.

§ 87(2)(g)

it is recommended that **Allegation J** and **Allegation K** be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____

	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date